



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP
Subject: Memorandum of Understanding between the City of Cheyenne; Granite Peak Development, LP; Clear Creek Land Company, LLC; Laramie Land Holdings, LLC; Cheyenne Logistics Hub, LLC; and Swan Ranch, LLC.
Date: February 27, 2023

Background:

The item for consideration is a Memorandum of Understanding between the City of Cheyenne; Granite Peak Development, LP; Clear Creek Land Company, LLC; Laramie Land Holdings, LLC; Cheyenne Logistics Hub, LLC; and Swan Ranch, LLC.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 2/27/2023
- Public Services Committee 3/7/2023
- Final consideration 3/13/2023

The purpose of this agreement is to settle past due fees associated with development in the Swan Ranch Business Park located generally located in southwest Cheyenne. In conjunction with development of the business park a development agreement was executed on May 27, 2011, which was restated on September 3, 2013. The restated agreement specified payment of a \$1,000 per acre "Public Infrastructure Fee" (subject to inflationary adjustments based on the Engineering News Record's Construction Cost Historical Indexes). The present rate is \$1397.38 per acre. The purpose of the infrastructure fee is to fund infrastructure enhancements to support the business park.

This agreement intends to memorialize the payment of past due fees by the parties and serve as a restatement of the Development Agreements to allow transfer of lands to subsidiaries of Granite Peak Development, LP, Clear Creek Company, LLC, and Swan Ranch, LLC, without requiring payment of infrastructure fees. The past due fees are the result of extraordinary circumstances and many of the more recent fees have been paid.

Staff has determined, and the developer has agreed, that a total of \$145,222.02 is due. This total amount is based on the fees due at the time of land transfer and excludes transfers to subsidiaries of the parent companies, Granite Peak Development, LP; Clear Creek Land Company, LLC; and Swan Ranch, LLC.

The breakdown of payments is as follows:

- Granite Peak Development, LP: \$139,308.85
- Clear Creek Land Company, LLC \$5,913.15

All fees will be paid within five days of execution of the agreement and will settle past due fees.

Transfers to other entities will require payment of the infrastructure fee at the current rate at the time of transfer.

Attachments:

1. Memorandum of Understanding

AGREEMENT

The City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming; Granite Peak Development, LP; Clear Creek Land Company, LLC; Laramie Land Holdings, LLC; Cheyenne Logistics Hub, LLC; and Swan Ranch LLC (collectively the “Parties”) agree to and stipulate as follows:

1. The City of Cheyenne, Granite Peak Development, LP, Clear Creek Land Company, LLC, and Swan Ranch LLC were signatories to a Development Agreement, which was recorded on May 27, 2011, in Book 2221, Page 1156, and an Amended and Restated Development Agreement, which was recorded September 3, 2013, in Book 2356, Page 707. (collectively “Development Agreements”). The Laramie Land Holdings, LLC and Cheyenne Logistics Hub, LLC are affiliates of Granite Peak Development, LP, Clear Creek Company, LLC, and Swan Ranch LLC.

2. The Development Agreements required payments of “Public Infrastructure Fees” at the time properties subject to the Development Agreements that were sold to outside third-party entities for development and occupancy of the property. These fees were set at One Thousand Dollar (\$1,000.00) per acre and set to increase with an inflationary adjustment. *See* pp. 6-7 of the Amended and Restated Development Agreement recorded on September 3, 2013.

3. The Parties have met and conferred and desire to resolve the payment of all outstanding Public Infrastructure Fees pursuant to the Development Agreements to date.

4. The Parties stipulate and agree that the outstanding balance of all Public Infrastructure Fees currently due and owing pursuant to the Development Agreements as of the date of this Agreement is one hundred forty-four thousand two hundred twenty-two dollars and one cent (\$145,222.01). The calculation of all applicable fees, parcels, and acreage are as shown on Attachment A.

5. Granite Peak Development, LP, hereby agrees to pay the City of Cheyenne the sum of one hundred thirty-nine thousand three hundred eight dollars and eighty-five cents (\$139,308.85) within five (5) days of the full execution of this agreement by all parties. *See* Attachment A.

6. Clear Creek Land Company, LLC, hereby agrees to pay the City of Cheyenne the sum of Five Thousand Nine Hundred Thirteen Dollars and Fifteen Cents (\$5,913.15) within five (5) days of the full execution of this Agreement by all parties. *See* Attachment A.

7. The parties hereby stipulate and agree that the above detailed payments by Granite Peak Development, LP and the Clear Creek Land Company, LLC resolve all outstanding Public Infrastructure Fees due and owing to the City of Cheyenne under the Development Agreements by Granite Peak Development, LP, Clear Creek Land Company, LLC, Swan Ranch LLC, Laramie

Land Holdings, LLC, and Cheyenne Logistics Hub, LLC, as of the date of the full execution of this Agreement by all parties.

8. The City of Cheyenne hereby agrees that the payment of these sums constitutes a full and final settlement of all funds due and owing to the City of Cheyenne under the Development Agreements for Public Infrastructure Fees with the understanding that any future transfer of land to Laramie Land Holdings, LLC, or Cheyenne Logistics Hub, LLC (not in existence at the time of the original agreement) shall not count as transfers to a third party and any transfer of land from Laramie Land Holdings, LLC, or Cheyenne Logistics Hub, LLC (not in existence at the time of the original agreement) to any unrelated third-party agency shall trigger the payment of the fees at the time of that land transfer; also noting, however, that Lot 1, Block 1, CFD Park-N-Ride and Swan Ranch Rail Park, 2nd Filing (replatted into 10th Filing) will be exempt from Public Infrastructure Fees.

IN WITNESS WHEREOF, we have hereunto set our hands this _____ day of _____, 2023.

CITY OF CHEYENNE:

Patrick Collins, Mayor

Date

(SEAL)

Attest:

Kristina F. Jones, City Clerk

Josh Jamison
Managing Partner, Granite Peak Development, LP

Date

Doug Samuelson
Managing Member, Clear Creek Land Company, LLC

Date

Attachment A - Time-of-Sale rate

Non-exempt parcels with fees due

Subdivision	Block	Lot	Current Owner (as of 2/9/2023)	Acres	Sale yr	Rate at sale	Fee at sale	Responsible entity
Swan Ranch Rail Park, 3rd Filing	2	4	ELSEY FAM LEGACY TR 1	33.41	2018	1158.71	\$38,712.50	Granite
Swan Ranch Rail Park, 9th Filing	1	2	LONGHAUL ENTERPRISES LLC	20.15	2022	1362.2	\$27,448.33	Granite
Swan Ranch Rail Park, 14th Filing	1	1	KAUPP REAL ESTATE LLC	5.5	2018	1158.71	\$6,372.91	Granite
16th Filing Double-payment credit				-15			-\$15,912.30	Granite
Overland Trails Business Park [1st]	1	10	RIDGE ENTERPRISES LLC	2.41	2021	1307.45	\$3,150.95	Granite
Overland Trails Business Park [1st]	1	5	STORE MASTER FUNDING XX LLC	4.33	2021	1307.45	\$5,661.26	Granite
Overland Trails Business Park, 2nd	1	1	RIDGE ENTERPRISES LLC	3.6	2021	1307.45	\$4,706.82	Granite
Overland Trails Business Park, 2nd	2	2	STORE MASTER FUNDING XX LLC	9.53	2021	1307.45	\$12,460.00	Granite
Overland Trails Business Park [1st]*	1	1	OVERLAND TRAILS LLC	3.44	2022	1362.2	\$4,685.97	Granite
Overland Trails Business Park [1st]*	1	2	OVERLAND TRAILS LLC	3.87	2022	1362.2	\$5,271.71	Granite
Overland Trails Business Park [1st]*	1	4	OVERLAND TRAILS LLC	4.26	2022	1362.2	\$5,802.97	Granite
Overland Trails Business Park [1st]*	2	1	CHET HALVORSON PROP LLC	3.48	2022	1362.2	\$4,740.46	Granite
Overland Trails Business Park [1st]*	2	2	OVERLAND TRAILS LLC	1.99	2022	1362.2	\$2,710.78	Granite
Overland Trails Business Park [1st]*	2	3	OVERLAND TRAILS LLC	1.97	2022	1362.2	\$2,683.53	Granite
Overland Trails Business Park [1st]*	2	4	CHET HALVORSON PROP LLC	3.04	2022	1362.2	\$4,141.09	Granite
Overland Trails Business Park [1st]*	2	5	OVERLAND TRAILS LLC	2.95	2022	1362.2	\$4,018.49	Granite
Overland Trails Business Park [1st]*	2	8 + CASH FLOW = HAPPINESS LLC	2.55	2022	1362.2	\$3,473.61	Granite	
Overland Trails Business Park [1st]*	2	9	OVERLAND TRAILS LLC	2.3	2022	1362.2	\$3,133.06	Granite
Overland Trails Business Park, 2nd*	2	1	OVERLAND TRAILS LLC	3.9	2022	1362.2	\$5,312.58	Granite
Overland Trails Business Park, 2nd*	3	1	OVERLAND TRAILS LLC	2.07	2022	1362.2	\$2,819.75	Granite
Overland Trails Business Park, 2nd*	3	2	OVERLAND TRAILS LLC	1.83	2022	1362.2	\$2,492.83	Granite
Overland Trails Business Park, 3rd*	1	1	OVERLAND TRAILS LLC	3.98	2022	1362.2	\$5,421.56	Granite

* NOTE: these parcels were involved in one transfer to OVERLAND TRAILS LLC

						Granite Peak Total:	\$139,308.85	
Overland Trails, 5th	Tract B		PILOT TRAVEL CENTERS LLC C/O STORE 759	1.74	2019	1181.71	\$2,056.18	Clear Creek
Energy Park One	---	3	BYRNE ENERGY PARK ONE LLC	2.95	2021	1307.45	\$3,856.98	Clear Creek
Swan Ranch Rail Park, 2nd Filing	2	3	CHEYENNE LEADS	6.07	2016	Exempt		Clear Creek
						Clear Creek Total:	\$5,913.15	
CFD Park-N-Ride	1	1	CHEYENNE FRONTIER DAYS FOUNDATION INC	27.69	2019	Exempt		Swan Ranch
						Swan Ranch Total:	\$0.00	
						GRAND TOTAL:	\$145,222.01	

Non-exempt parcels previously paid for

Subdivision	Block	Lot	Current Owner (as of 2/9/2023)	Acres
Swan Ranch Rail Park, 1st Filing	1	1A	BRENNTAG PACIFIC INC	5
Swan Ranch Rail Park, 1st Filing	1	1B	BRENNTAG PACIFIC INC	6.21
Swan Ranch Rail park, 3rd Filing	1	3	ICEROCK WYOMING LLC	5.95
Swan Ranch Rail Park, 9th Filing	1	1	GRANITE PEAK EQUIP HOLDINGS LLC	11.43
Swan Ranch Rail Park, 12th Filing	1	1	CHEYENNE RAIL HUB LLC	15.63
Swan Ranch Rail Park, 16th Filing	1	1	WYOMING HORSE RACING LLC	36.55
Overland Trails Business Park [1st]	1	9	BLUE BEACON INTERNATIONAL INC	3.93
Overland Trails Business Park, 3rd	1	2	GBP LLC	4.77
Overland Trails Business Park [1st]	1	3	SAIA MOTOR FREIGHT LINE LLC	5.55